

Reena Singh vs M S Bhumi Sagar Infrastructure Pvt Ltd on 29 August, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 492/2022 & CRL.M.A. 2157/2022
REENA SINGH

..... Petition

Through: Mr. Siddhartha Shankar Ray, Mr.
Abhik Kumar, Advs.
versus

M S BHUMI SAGAR INFRASTRUCTURE PVT LTD

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Through: Ms. Juhi, Advocate

CORAM:

HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 29.08.2022 This is a petition filed seeking quashing of the Criminal Complaint No. 14799/2019 titled 'Bhumi Sagar Infrastructure Pvt. Ltd. vs. A. and A Build Projects Pvt. Ltd.' pending with the learned MM (NI Act)-03, Patiala House Courts, New Delhi under Section 138/142 of the Negotiable Instruments Act.

It is stated by Mr. Ray, learned counsel for the petitioner that the petitioner is the wife of one of the Directors, namely, Mr. Mukesh Bahadur Singh. The complaint under Section 138 NI Act has been filed by the respondent for bouncing of cheque bearing No.009016 dated 20.09.2019 for an amount of Rs. 7.5 crores.

It is stated in the petition that the petitioner is neither the Director nor the signatory of M/s A and A Build Projects Pvt. Ltd. and he had resigned as a Director from the company on 18.09.2019. The check in question is dated 20.09.2019.

My attention has been drawn to Annexure P-7 being Form No. DIR-

11, wherein it has been recorded that the petitioner resigned from the directorship of the company on 18.09.2019. The respondent has filed a reply, wherein the primary objection is of malafides.

Ms. Juhi, learned counsel for the respondent states that the main counsel is indisposed today and is unable to appear.

In this view of the matter, the matter is re-notified on 25.11.2022. In the meanwhile, in view of the facts stated above, the proceedings before the learned MM (NI Act)-03, Patiala House Courts, New

Delhi is stayed till the next date of hearing and before the Revision Court bearing Revision No. 89/2022 is also stayed till the next date of hearing.

JASMEET SINGH, J AUGUST 29, 2022 / (MS) [Click here to check corrigendum, if any](#)